task ordinarily controlled by counsel and there was no evidence in the record of client fault, prior sanctions, or a pattern of willful delay. This, the court held, violated governing principles under CCP section 575.2, subdivision (b), and Government Code § 68608, subdivision (b), which require courts to impose sanctions that are proportionate and consider attorney fault separately from client responsibility. (See also, *Levitz v. The Warlocks* (2007) 148 Cal.App.4th 531, 535-36; *Franklin Capital Corp. v. Wilson* (2007) 148 Cal.App.4th 187, 212; *Garcia v. McCutchen* (1997) 16 Cal.4th 469, 478.) So it is here. The procedural failures that led to dismissal were attributable to counsel, not Plaintiffs, and there is no evidence of prior sanctions or willful delay by Plaintiffs.

Defendants argue that vacating the dismissal would prejudice them because certain claims are now barred by applicable statutes of limitation and/or repose. The court acknowledges this argument but concludes that such asserted prejudice does not preclude mandatory relief under CCP section 473(b). The obligation to continue litigating the case is not cognizable prejudice. Rather, a party opposing relief must present evidence of actual prejudice such as missing witnesses, destroyed evidence, or similar circumstances affecting the ability to defend the case. (See, e.g., *Aldrich v. San Fernando Valley Lumber Co.* (1985) 170 Cal.App.3d 725, 740.)

Attorney Fees and Costs Under CCP § 473(b)

Where relief is granted under the mandatory relief prong of CCP section 473(b), the court shall direct the attorney to pay reasonable compensatory attorney's fees and costs to the opposing party. Because relief is granted based on an affidavit of attorney fault, Plaintiffs' counsel is obligated to pay Defendants' reasonable attorney fees and costs incurred in opposing the motion. Defendants may contest the tentative ruling and request a continuance of the hearing for the limited purpose of submitting a declaration addressing the amount of fees sought.

3. 9:00 AM CASE NUMBER: C23-00293
CASE NAME: INTERSTATE FIRE & CASUALTY COMPANY VS. CHEVRON ENVIRONMENTAL MANAGEMENT COMPANY
HEARING IN RE: APPLICATION TO APPEAR PRO HAC VICE AS TO MAGGIE BURRESON FOR DII CHEVRON ENVIROMENTAL AND CHEVRON USA
FILED BY: CHEVRON ENVIRONMENTAL MANAGEMENT COMPANY
TENTATIVE RULING:
Granted.

4. 9:00 AM CASE NUMBER: C23-02401
CASE NAME: KIARA ROSS VS. KOTLIER ERNEST M.
***HEARING ON MOTION IN RE: CONSOLIDATE RELATED CASES**
FILED BY: SEQUOIA EQUITIES, INCORPORATED
TENTATIVE RULING:
Before the Court is a motion by defendants Sequoia Equities, Inc. and Alder Creek Management, Inc. For the reasons set forth, the hearing on the motion is **continued to 9:00 a.m. on February 5, 2026**.

Background

This action is a putative class action ("Class Action") filed by Kiara Ross, Felicia Costa, and Mark Peipowski ("Class Plaintiffs") against Sequioa Equities, Incorporated, Alder Creek Management, Inc., and numerous other entities alleged to be owners of apartment buildings in which the plaintiffs and class members currently reside or have resided. The first amended class action complaint alleges causes of action for violations of Civil Code section 1950.5 regarding tenant deposits and of the Unfair Competition Law, Business & Professions Code section 17200, *et seq.* ("UCL"), negligence, and defamation. On December 10, 2024, the Court filed an order on the parties' Stipulation re: Dismissal of Defendants; Tolling Agreement pursuant to which all defendants other than Sequoia and Alder were dismissed as defendants in the Class Action.

Subsequent to the commencement of the class action case, Fuller Properties, LLC and more than 20 other entities ("Fuller Plaintiffs") filed suit against Sequoia and Alder, initiating the related action C24-01538 ("Landlord Action"). The second amended complaint in the Landlord Action filed on December 23, 2025 alleges seven causes of action against Sequoia and Alder, including breach of fiduciary duty, fraud and intentional misrepresentation, negligent interference with prospective business advantage, broker's constructive fraud, declaratory relief, and accounting. The claims as alleged arise out of the Sequoia/Alder Defendants' obligations to the Fuller Plaintiffs under a management contract and their duties as agents for Plaintiffs.

<u>Motions to Consolidate</u>

On June 25, 2025, the Fuller Plaintiffs filed a motion to consolidate the Landlord Action with this Class Action. The Landlord Action was assigned to Department 9, the Honorable John P. Devine, and the motion to consolidate was set for hearing in Department 9 on October 13, 2025. On June 26, 2025, the Fuller Plaintiffs filed a copy of their notice of motion and motion to consolidate the cases in this Class Action, which is the low-numbered case (C23-02401). A hearing on the consolidation motion in this Class Action was set for November 20, 2025.

Other hearings in this case were also scheduled for November 20, 2025. By order filed November 12, 2025 on a stipulation of the parties, the Court continued all hearings set for November 20, 2025 to January 22, 2026.

On October 13, 2025, Department 9 issued a tentative ruling on the Fuller Plaintiffs' motion to consolidate in the Landlord Action that was not timely contested and became the order of the Court. (*See* Landlord Action 10/13/2025 Min. Order.) The hearing on the consolidation motion in the Landlord Action was vacated. The parties were advised that pursuant to Local Civil Rule 3.49 (renumbered effective July 1, 2025, and previously numbered 3.50), "Motions to consolidate must be noticed for hearing in the department which is assigned to the lowest numbered case of those cases proposed for consolidation." (*See also* Cal. R. Ct., Rule 3.350(a)(2).) (Landlord Action 10/13/2025 Min. Order.) They were further advised that "the moving parties' memorandum and declarations in support of the motion, the opposition pleadings, and any reply must be filed and served in the low-numbered case, *Ross et al. v. Sequoia Equities, etc., et al.*, Case No. 23-02401 pending in Department 39." (Landlord Action 10/13/2025 Min. Order.)

<u>Analysis and Disposition</u>

As of the time of preparation of this tentative ruling, the motion papers filed in this case include only a notice of motion and motion, without any of the supporting pleadings, and the moving parties did not file a copy of the reply that they had previously filed in the Landlord Action. On January 15, 2026, Fuller Properties and related parties filed their opposition papers from the Landlord Action in this case, and a declaration by their counsel acknowledging Judge Devine's prior order and their oversight in not filing the opposition pleadings in this case. The Court does not have before it in this case the pleadings necessary for the Court to rule on the merits of the consolidation motion. The Court therefore continues the hearing.

Moving parties shall file in this Class Action copies of all of their moving papers and their reply previously filed in the Landlord Action **by January 29, 2026**.

5. 9:00 AM CASE NUMBER: C23-03203
CASE NAME: BRYANT POTTS VS. BUILDING CONNECTIONS BEHAVIORAL HEALTH, INC
***HEARING ON MOTION IN RE: RELIEF FROM WAIVER OF DISCOVERY OBJECTIONS**
FILED BY: BUILDING CONNECTIONS BEHAVIORAL HEALTH, INC
****TENTATIVE RULING:****
Off calendar. Withdrawn by moving party.

6. 9:00 AM CASE NUMBER: C23-03307
CASE NAME: PAWNEE LEASING CORPORATION VS. SARFARAZ DHILLON
***HEARING ON MOTION IN RE: RELEASE AND DISMISS ABSTRACT OF JUDGMENT**
FILED BY: DHILLON, SARFARAZ SINGH
****TENTATIVE RULING:****

The Abstract of Judgment issued on 6/3/2024 is ordered quashed as to Sarfaraz Singh Dhillon as of 8/11/2025. Plaintiff is ordered to give notice to the County in which the Abstract of Judgment was recorded.

The Court notes that entities (such as KUT Global Corporation) cannot be self-represented, so if KUT Global is a separate entity (as opposed to a dba), it will need to appear via answer with an attorney of record.

7. 9:00 AM CASE NUMBER: C24-00237
CASE NAME: CONNOR BEARE VS. THE LAW OFFICES OF MITCHELL D. BLUHM & ASSOCIATES, LLC
***HEARING ON MOTION IN RE: PRELIMINARY APPROVAL OF CLASS ACTION SETTLEMENT**
FILED BY: BEARE, CONNOR JEREMY
****TENTATIVE RULING:****

Hearing required on one issue.

Plaintiff Connor Beare moves for preliminary approval of his class action with defendant Law Offices of Mitchell D. Bluhm & Associates, LLC and Robert Bradley Ridgeway ("Defendants").

A. Background and Settlement Terms

The original complaint was filed January 31, 2024, raising class action claims under the California Rosenthal Fair Debt Collection Practices Act and California Civil Code sections 1812.700-1812.702, on behalf of 13 individuals who received debt-collection letters from defendants. Defendants allegedly did not provide a statutorily-required "Consumer Collection Notice" in proper form and substance in connection with efforts to collect a debt. It further alleged that Robert Ridgeway, an attorney employed by the law office in question, had failed to obtain a debt collection license from the California Department of Financial Protection and Innovation as required by Financial Code §100001.